

Here, Respondent's own reported income and assets show that she has independent means of support. In 2025, Respondent reported \$7,461.00 per month from National Storage Trust and \$1,912.00 per month in dividends and interest, in 2025, but now asserts that she is receiving \$4,333 per month and \$3,451 from those respective sources which total \$7,784 a month, while Petitioner reports his monthly income is \$9,481.

Respondent's Request for Order to Compel Further Responses to Form Interrogatories (Set One) and to Compel Further Responses to Requests for Production of Documents is DENIED as moot. The motion is moot to the extent that the request sought to compel further response. Petitioner subsequently served supplemental responses. Although Respondent contends the responses are inadequate, the separate statement that was provided is no longer current.

The court shall impose monetary sanctions against a party, person or attorney who unsuccessfully makes or opposes a motion to compel, unless the court finds that a party acted with substantial justification or other circumstances that make the imposition of the sanction unjust. (Cal. Code of Civ. Proc. §§2030.290, 2031.300.) California Rules of Court Rule 3.1348 states "(t)he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though...the requested discovery was provided to the moving party after the motion was filed." Here, although it is apparent that the motion to compel led to the further response, the court finds that Petitioner acted with substantial justification especially in light of his health issues to provide adequate discovery responses.

FL-24-00082 Vazquez, Martina vs. Damian, Luis E

Petitioner's Request for Order Requesting Spousal Support and Attorney's Fees is GRANTED.

Petitioner's request for spousal support is granted. Respondent is ordered to pay spousal support in the amount of \$965 per month. One-half of the payment is due on the first of each month and one-half of the payment is due on the fifteenth of each month. The order is effective June 18, 2026. Arrears are payable at a rate of \$100 per month. One-half of the payment is due on the first of each month and one-half of the payment is due on the fifteenth of each month.

The court used a printout of a computer calculation and findings, which is located below and incorporated in this order.

Petitioner's Request for Attorney's Fees is GRANTED. Respondent shall pay \$10,000 toward Petitioner's Attorney's Fees and Costs to be paid in installments of \$500 per month on the first of each month beginning on October 1, 2026. If any payment is not timely made and more than 15 days overdue, the entire unpaid balance will immediately become due with interests at the legal rate, which is currently 10 percent per year, from the date of default to the date payment is finally made. The Court finds that an award of attorney's fees and costs is appropriate because there is a demonstrated disparity between the parties in access to funds to retain or maintain counsel and the ability to pay for legal representation, the party requested to pay attorney's fees and costs has or is reasonably likely to have the ability to pay for legal representation for both parties and the requested attorney's fees and costs are reasonable and necessary.

2026

Guideline Summary

Monthly Figures

Fixed Shares	Husband	Wife	Monthly Figures		Cash Flow	
Number of children	0	0	2026		Combined net spendable	10777
Percent time with NCP	0.00%	0.00%				
Filing status	SINGLE	SINGLE	Nets (adjusted)		Husband	
Number of exemptions	1	1	Husband	7060	Payment cost/benefit	-965
Wages and salary	10455	0	Wife	3718	Net spendable income	6095
Self employed income	0	0	Total	10778	Federal income tax	1413
Other taxable income	0	4032	Support		Federal employment tax	800
TANF CS received	0	0	Addons	0	State income tax	526
Other nontaxable income	0	0	Guideln CS	0	State employment tax	136
New spouse income	0	0	S.Clara SS	965	Total taxes	2874
Employee 401-k contribution	0	0	Total	965	Federal filing status	SINGLE
Adjustments to income	0	0			State filing status	SINGLE
SS paid prev marriage	0	0			Wife	
CS paid prev marriage	0	0			Payment cost/benefit	965
Health insurance	0	0			Net spendable income	4683
Other medical expenses	0	0			Federal income tax	284
Property tax expenses	0	719			Federal employment tax	0
Ded interest expense	847	741			State income tax	30
Contribution deduction	0	0			State employment tax	0
Misc tax deductions	0	0			Total taxes	314
Qualified business income deduction	0	0			Federal filing status	SINGLE
Required union dues	0	0			State filing status	SINGLE
Mandatory retirement	521	0				
Hardship deduction	0	0				
Other GDL deductions	0	0				
Child care expenses	0	0				

FC 4055 checking: **ON**

Per Child Information

DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	0 - 0	0	0	0 Husband	0 Husband	0 Husband

END OF TENTATIVE DECISIONS

****Please contact Judicial Courtroom Assistant, Lesley Pace, at
(831) 636-4057 x127 or lpace@sanbenitocourt.org with
any objections or concerns.**